

JUDGE ABRAMS

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8609

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MATTHEW WALDRON,

Plaintiff,

COMPLAINT

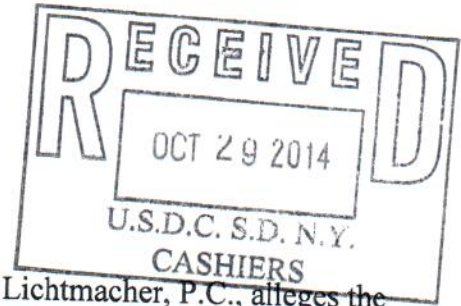
- against -

JURY TRIAL DEMANDED

POLICE OFFICER HENRY OF THE 67th
Precinct and UNIDENTIFIED POLICE
OFFICERS of the 67th pct all in their capacity
as individuals.

Defendants.

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Matthew Waldron, by his attorney, The Law Office of Fred Lichtmacher, P.C., alleges the following, upon information and belief, as his Complaint:

Nature of the Action

1. This civil rights action arises from the July 8, 2013 unlawful arrest and search of Matthew Waldron. Plaintiff seeks compensatory and punitive damages for violations of his civil rights.

Jurisdiction and Venue

2. Jurisdiction is founded upon the existence of a Federal Question.
3. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983.
4. Jurisdiction is founded upon 28 U.S.C. Sections 1331, 1343(3 & 4).
5. Venue is appropriate pursuant to 28 U.S.C. Sections 1391 (b) (1 & 2).
6. This action was commenced within three years of when plaintiff's claim accrued.

Parties

7. The plaintiff, MATTHEW WALDRON, is an African American male and he is a resident of Kings County in the City and State of New York.

8. The defendants POLICE OFFICER HENRY OF THE 67th Precinct and UNIDENTIFIED POLICE OFFICERS of the 67th pct are employed by the New York City Police Department and they are sued herein in their capacity as individuals.

9. At all times relevant the defendants were acting as state actors acting under color of law.

Facts Underlying

Plaintiff's Claims for Relief

10. On July 8, 2013 at approximately 7:00 a.m., in front of 831 East 48th Street Brooklyn NY, the individual defendants accosted, stopped, questioned, and then unlawfully detained, arrested and searched and thereafter caused the illegal strip search of Matthew Waldron.

11. Plaintiff was not involved in any illegal activity, and was simply walking from the bus stop located between Utica and Avenue D, towards his house.

12. The individual defendants, despite not having probable cause to believe that Mr. Waldron had done anything unlawful, handcuffed plaintiff, led him to a nearby police vehicle, and then drove plaintiff to the 67th Precinct Stationhouse.

13. Mr. Waldon was released with a Desk Appearance ticket after being held for over an hour and the DAT was dismissed before Mr. Waldron's first Court appearance.

14. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the unlawful arrest of Mr. Waldron.

15. Defendants' acts and omissions caused Mr. Waldron to suffer, among other injuries, deprivation of his constitutional rights, loss of his freedom, the debasement of being unlawfully arrested and imprisoned, the indignities and discomforts and privations of the arrest process, and the mental and emotional upset and trauma associated therewith.

16. The individual defendants, at all times relevant, and in detaining, arresting, imprisoning, plaintiff, acted intentionally, willfully, maliciously, and with reckless disregard for and deliberate indifference to Matthew Waldron's rights and well-being.

FIRST CAUSE OF ACTION
PURSUANT TO 42 U.S.C. § 1983
VIOLATION OF PLAINTIFF'S RIGHTS
PURSUANT TO THE FOURTH AMENDMENT
VIA FALSE ARREST

17. Plaintiff repeats the allegations of the foregoing paragraphs as though fully stated herein.
18. The plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that the plaintiff was falsely arrested by the defendants.
19. The plaintiff was confined by defendants; defendants intended to confine the plaintiff; plaintiff was conscious of his confinement; and plaintiff did not consent to the confinement which was not otherwise privileged.
20. As a direct consequence of defendants' actions, plaintiff was deprived of his rights, privileges and immunities pursuant to the Fourth Amendment of the United States Constitution and more particularly, his right to be free from arrest without probable cause.
21. Among other invasions of his privacy, offenses to his dignity and violations of his rights, plaintiff was subjected to being handcuffed, searched, confined, insulted, humiliated and he was given a DAT to appear in court.
22. The false arrest was caused by the defendants without any legal justification, without authority of the law and without any reasonable cause or belief that plaintiff was in fact guilty of crimes.
23. Defendants who were aware of the false arrest and permitted the illegal detention of the plaintiff to continue, are liable to plaintiff by virtue of their failure to act pursuant to their affirmative duty to intervene.
24. By reason of the foregoing, Matthew Waldron was falsely arrested, in that defendants intentionally confined plaintiff, without probable cause to believe he had committed a crime, he was aware of and did not consent to the confinement and his arrest was not otherwise authorized by operation of law.

25. As a consequence thereof, Matthew Waldron has been injured and he is entitled to compensatory and punitive damages to be determined by the trier of fact and an award of attorneys' fees pursuant to 42 U.S.C. § 1988 to be determined by the Court.

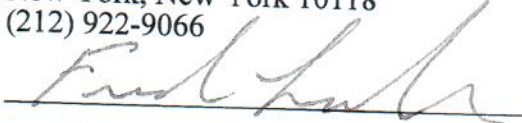
Request for Relief

WHEREFORE, plaintiff respectfully requests entry of judgment stating that plaintiff's right to be free from an unreasonable search and seizure under the Fourth Amendment and the New York Constitution was violated and

- (A) Compensatory damages in an amount to be fixed at trial;
- (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the individual defendants in an amount to be fixed at trial;
- (C) An award of attorneys' fees pursuant to 42 U.S.C. § 1988 to be determined by the Court;
- (D) An award to plaintiff of the costs and disbursements herein; and
- (E) Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
October 24, 2014

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By: Fred Lichtmacher